

treason, he hath it in cases of lessor crimes : but this we deny, for if it appears that he hath power to commit in one case only, how can we then without authority say he has that power in other cases ? he is not a conservator of the peace ; Justice Rokeby only says he is in the nature of a conservator of the peace : we are now bound by the cases of *The Queen and Derby*, and *The King and Earbury*.

The Secretary of State is no conservator nor a justice of the peace, quasi secretary, within the words or equity of the Stat. 24 Geo. 2, admitting him (for arguments sake) to be a conservator, the preamble of the statute shews why it was made, and for what purpose ; the only grantor of a warrant therein mentioned, is a justice of the peace ; justice of peace and conservator are not convertible terms ; the cases of construction upon old statutes, in regard to the warden of the Fleet, the Bishop of Norwich, &c. are not to be applied to cases upon modern statutes. The best way to construe modern statutes is to follow the words thereof ; let us compare a justice of peace and a conservator ; the justice is liable to actions, as the statute takes notice, it is applicable to him who acts by warrant directed to constables ; a conservator is not intrusted with the execution of laws, which by this Act is meant statutes, which gives justices jurisdiction ; a conservator is not liable to actions ; he never acts : he is almost forgotten ; there never was an action against a conservator of the peace as such ; he is antiquated, and could never be thought of when this Act was made ; and ad ea quæ frequenter accidunt jura adaptantur. There is no act of a constable or tithingman as conservator taken notice of in the statute ; will the Secretary of State be ranked with the highest or lowest of these conservators ? the Statute of Jac. 1, for officers acting by authority to plead the general issue, and give the special matter in evidence, when considered with this Statute of 24 Geo. 2, the latter seems to be a second part of the Act of Jac. 1, and we are all clearly of opinion that neither the Secretary of State, nor the messengers, are within the Stat. 24 Geo. 2, but if the messengers had been within it, as they did not take a constable [291] with them according to the warrant, that alone would have been fatal to them, nor did they pursue the warrant in the execution thereof, when they carried the plaintiff and his books, &c. before Lovel Stanhope, and not before Lord Halifax ; that was wrong, because a Secretary of State cannot delegate his power, but ought to act in this part of his office personally.

The defendants having failed in their defence under the Statute 24 Geo. 2 ; we shall now consider the special justification, whether it can be supported in law, and this depends upon the jurisdiction of the Secretary of State ; for if he has no jurisdiction to grant a warrant to break open doors, locks, boxes, and to seize a man and all his books, &c. in the first instance upon an information of his being guilty of publishing a libel, the warrant will not justify the defendants : it was resolved by B. R. in the case of *Shergold v. Holloway*, that a justice's warrant expressly to arrest the party will not justify the officer, there being no jurisdiction. 2 Stran. 1002. The warrant in our case was an execution in the first instance, without any previous summons, examination, hearing the plaintiff, or proof that he was the author of the supposed libels ; a power claimed by no other magistrate whatever (Scroggs C.J. always excepted) ; it was left to the discretion of these defendants to execute the warrant in the absence or presence of the plaintiff, when he might have no witness present to see what they did ; for they were to seize all papers, bank bills, or any other valuable papers they might take away if they were so disposed ; there might be nobody to detect them. If this be lawful, both Houses of Parliament are involved in it, for they have both ruled, that privilege doth not extend to this case. In the case of *Wilkes*, a member of the Commons House, all his books and papers were seized and taken away ; we were told by one of these messengers that he was obliged by his oath to sweep away all papers whatsoever ; if this is law it would be found in our books, but no such law ever existed in this country ; our law holds the property of every man so sacred, that no man can set his foot upon his neighbour's close without his leave ; if he does he is a trespasser, though he does no damage at all ; if he will tread upon his neighbour's ground, he must justify it by law. The defendants have no right to avail themselves of the usage of these warrants since the Revolution, and if that would have justified them they have not averred it in their plea, so it could not be put, nor was in issue at the trial ; we can safely say there is no law in this country to justify the defendants in what they have done ; if there was, it would destroy all the comforts of society ; for papers are